IN THE NATIONAL COMPANY LAW TRIBUNAL
NEW DELHI BENCH-IV

CP. (CAA)-104/ND/2021

Connected with

CA. (CAA)-71/ND/2021

Sections 230-232 and other applicable provisions of the Companies Act, 2013 read with Companies (Compromises, Arrangements and Amalgamations Rules, 2016).

IN THE MATTER OF SCHEME OF ARRANGEMENT

OF

M/s. Ebro Tilda Private Limited
..... Demerged Company / Petitioner Company No.1

AND

M/s. Ebro India Private Limited
..... Resulting Company / Petitioner Company No.2

Order Delivered on: 08.06.2022

CORAM:

SH. DHARMINDER SINGH, HON'BLE MEMBER (J)

MS. SUMITA PURKAYASTHA, HON'BLE MEMBER (T)

ORDER

PER- SUMITA PURKAYASTHA, MEMBER (TECHNICAL)

1. This joint petition has been filed by the applicant companies under Sections 230 and 232 of the Companies Act, 2013 read with the Company (Compromises, Arrangements and Amalgamations) Rules, 2016 and the

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National Company Law Tribunal Rules, 2016, for the purpose of approving the proposed Scheme of Arrangement, as contemplated between the Demerged Company and Resulting Company. The copy of the scheme of arrangement has been placed on record.

2. The present Petition has been filed jointly by all the Demerged Company and Resulting Company (hereinafter together called the **"Petitioner Companies"**). It is represented that the registered office of the Petitioner Companies being situated in Delhi, therefore lies with this Tribunal.

3. A perusal of the petition discloses that the first motion application bearing C.A. No. (CAA) 71/ND/2021 was jointly filed by the Petitioner Companies. Based on the averments made in the said application the Tribunal vide order dated 16.07.2021 wherein the meetings of the equity shareholders, secured creditors and unsecured creditors of the respective Petitioner Companies were directed to be convened. The report of the chairperson along with scrutinizer report for the respective meetings have been filed and annexed.

4. The appointed date as fixed for the proposed scheme of Arrangement is 1st day of April, 2020.

5. The Tribunal vide order dated 28.10.2021 had directed the Petitioner Companies to issue individual notices to the Regional Director, Ministry of Corporate Affairs, Registrar of Companies, NCT of Delhi and Haryana, Income

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Tax Department. An affidavit of service dated 17.01.2022 was jointly filed by the Petitioner Companies affirming that notice of the petition along with all the annexures intimating the final date of hearing had been served on the Regional Director, Ministry of Corporate Affairs, Registrar of Companies, NCT of Delhi and Haryana and concerned Income Tax Department respectively in compliance with the order of the Tribunal dated 28.10.2021.

6. The Petitioner Companies vide order dated 28.10.2021 were directed to advertised the notice of hearing in the newspapers namely, "Business Standard" (English, Delhi edition) and "Jansatta" (Hindi, Delhi edition). The Petitioner Companies have filed the affidavit dated 17.01.2022 in respect of notice of hearing in compliance of the order dated 28.10.2021 affirming that notice of hearing was duly advertised in Business Standard (English, Delhi edition) and "Jansatta" (Hindi, Delhi edition) on 14.01.2022.

7. The reply of the Income Tax Department report of the Official Liquidator have been filed. The income tax department in its report submitted that there are no demand / proceedings pending against the petitioner companies and the department has no objection to the proposed scheme of arrangement among the petitioner companies.

8. The reply of the Regional Director and Report of the Official Liquidator have been filed. The Regional Director in its report submitted that a query letter was issued to the Petitioner Companies for sanction of Scheme of

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Amalgamation between the petitioner companies to which reply was received on 28.06.2021 and in terms of the RoC report dated 09.07.2021 the following observations were made that from the contents of the scheme, the reply/clarifications received from the petitioner companies it appears that the scheme is not in violation of Sections 230-232 of the Companies Act, 2013.

9. The Regional Director, Northern Region has not filed its reply. Be that as it may, in order to protect the interest, it is made clear there shall no default in filing the statutory return /documents with the RoC or with the Regional Director.

10. The certificate of the statutory auditor of the respective Petitioner Companies certifying that the accounting treatment in the Scheme is in conformity with the accounting standards in terms of Section 133 of the Companies Act,2013 is on record.

11. We have heard the counsels for the petitioner companies and also considered the representation made by the Income Tax Department. In the reply filed by the Income Tax Department, it has been confirmed that no demand/proceedings pending against the petitioner companies and the department has no objection to the proposed scheme of amalgamation.

12. In view of the foregoing, upon considering the approval accorded by the members and creditors of all the Petitioner Companies to the proposed Scheme, and no objections being raised by the concerned income tax

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department there appears to be no impediment in granting sanction to the Scheme.

13. Consequently, the sanction is hereby granted to the Scheme under sections 230-232 of the Companies Act, 2013 and the Company (Compromises, Arrangements and Amalgamations) Rules, 2016. The sanctioned Scheme of arrangement shall be binding on all the petitioner companies and on all their respective shareholders and creditors.

14. The Petitioner Companies shall also be bound to comply with the statutory requirements in accordance with law. Notwithstanding the above, if there is any deficiency found or, violation committed qua any enactment, statutory rule or regulation, the sanction granted by this court to the scheme will not come in the way of action being taken, albeit, in accordance with law, against the concerned persons, directors and officials of both the petitioner companies.

15. While approving the Scheme as above, we further clarify that this order should not be construed as an order in any way granting exemption from payment of stamp duty, Statutory dues or any other charges, if any, and payment in accordance with law or in respect to any permission/ compliance with any other requirement which may be specifically required under any law.

16. The Petitioner Companies shall within thirty days of the date of the receipt of this order cause a certified copy of this order to be delivered to the Registrar

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of Companies for registration and on such certified copy being so delivered, the Registrar of Companies shall place all documents relating to the transferor companies and registered with them and shall consolidate the files of the companies, is accordingly duly approved and sanctioned in terms of the above.

17. Any person interested shall be at liberty to apply to the Tribunal in the above matter for any directions that may be necessary.

The petition stands disposed of in the above terms.

Let copy of the order be served to the parties.

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(SUMITA PURKAYASTHA)
MEMBER (T)

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(DHARMINDER SINGH)
MEMBER (J)